

Yuba County Flock Oversight Project — Master Checklist

Last updated: April 25, 2026 Status key: [x] = Complete | [] = Pending / In progress

Data Collection & Analysis

- [x] Transparency portal scraper built and running twice daily
 - flock_update.py via LaunchAgent; GitHub repo yuba-county-flock-oversight live with automated commit trail
 - [x] ~53% blank reason rate confirmed in portal search audit data
 - Post-December 2025 baseline; self-contradiction within YCSO's own public portal policy statement
 - [x] ~44-45% after-hours search concentration confirmed (10 PM–6 AM Pacific)
 - UTC timezone error caught and corrected; finding is independent of blank rate finding
 - [x] Backdated / retroactively added log entries detected
 - Undermines audit log integrity as an evidentiary argument
 - [x] networkCount tier clustering analysis completed
 - 5 apparent tiers identified; expanded regional tier = worst documentation (75.7% blank); presented as open question, not confirmed — pending Flock data dictionary CPRA
 - [x] 25-month YCSO Facebook post analysis completed (Jul 2023–Nov 2025)
 - 14,671 total notifications; no causal link to arrests established; YCSO's own footnote definition used against them
 - [x] DOJ crime clearance rate analysis compiled (2015–2024, 10 crime types)
 - Rates dropped during Flock deployment period; attribution problem properly framed; Yuba_Clearance_Rate_Final.xlsx
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Legal & Contractual Findings

- [x] Policy 433 vs. contract retention conflict documented
 - Policy says 60-day retention; executed contract purchased up to one year
- [x] SB 34 / Vehicle Code § 2413 compliance gap established
 - Transparency Portal is vendor-controlled, not a compliant agency audit log
- [x] Conflict of interest argument established (dual-track)
 - Gov. Code § 1090 + Yuba County Conflict of Interest Code; Undersheriff Morawczewski chairs oversight committee for funds flowing to his own department

- [x] OMNIA cooperative purchasing contract RS250203 analyzed (April 16, 2026)
 - Three-way retention conflict: Flock 30-day default vs. Policy 433 60-day vs. MSA one-year maximum
 - Flock's pre-installation permitting coordination commitment strengthens Track B
 - No-proprietary-information certification forecloses trade-secret exemption claims
 - Agency data ownership language prevents YCSO from deflecting SB 34 obligations to Flock
 - [x] YCSO bilateral network sharing confirmed via partner portals (April 20, 2026)
 - YCSO appears as sharing partner on Antioch PD and Woodland PD Transparency Portals
 - Not disclosed on YCSO's own portal — documentable SB 34 § 2413(b) gap
 - Network spans 224+ agencies; out-of-state reach (Las Vegas Metro, Reno NV) confirmed; NCRIC/WSIN federal fusion centers in granted-access list
 - Documented in research summary Section 17
 - [x] YCSO 2025 Annual Report — SB 34 omission finding documented
 - No Flock or ALPR disclosure in annual report; no § 2413 annual report produced publicly
 - Policy 103 Law Enforcement Code of Ethics ("exemplary in obeying the laws of the land") creates self-contained closing argument
 - [x] Flock T&C changes (Feb 2026) and Cal DOJ vs. El Cajon flagged for BOS presentation
 - T&C removed "never sell data" language; added worldwide/perpetuity rights — fiscal stewardship angle
 - AG suing El Cajon over NCRIC data sharing; directly parallels YCSO outside-agency search patterns
 - [x] Flock December 2025 system changes documented and implications analyzed
 - Drop-down replacement of free-text; removal of officer names/plate numbers from Network Audit Logs; SB 34 non-compliance risk flagged
 - [x] JAG grant conditions reviewed (40, 45, 46, 48)
 - Privacy certificate, 28 C.F.R. Part 23, Justice Information Sharing, facial recognition policy requirements identified
 - [x] Measure K Chapter 5.60 governance structure analyzed
 - Trust fund requirement (§5.60.160), annual audit mandate, and oversight committee scope confirmed via Ord. No. 1575
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Public Records (CPRA)

- [x] Phase 1 CPRA filed; MSA and Policy 433 produced
 - YCSO cited inapplicable Civil Code § 1798.90.55(b) for withheld records; follow-up drafted
- [x] CPRA 26-136 partial response — OMNIA contract produced April 16, 2026
 - Three categories remain unresolved: authorization/access structure, audit reports/compliance summaries, interagency data sharing agreements

- YCSO attempted to redirect audit/compliance request to Flock Transparency Portal (documented non-response)
 - **April 25, 2026 follow-up trigger:** if no further production, send formal constructive denial letter with AG petition notice under § 7923.100
 - [] 26-136 outstanding categories — authorization/access, audit/compliance, interagency sharing
 - Constructive denial letter → AG complaint pathway ready to execute if needed
 - [] Phase 2 CPRA — awaiting Phase 1 completion before filing
 - Targets: unredacted search logs, SB 34 compliance docs, JAG compliance, user access records, hit-to-arrest data
 - [] Phase 3 CPRA — notification-to-enforcement outcome data
 - Connects Facebook notification figures to actual case outcomes; filed after Phase 2 responses in hand
 - [x] CPRA to Public Works / Transportation for encroachment permits — filed April 10, 2026
 - Key finding: Public Works MOU covers Starbend Boat Ramp camera only
 - Plumas Lake installations may lack any documented authorization — strategically significant gap
 - [] Flock data dictionary CPRA (networkCount field definitions)
 - Needed to confirm tier clustering inference; currently presented as open question
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Presentation & Outreach

- [] BOS public comment #1 — Flock surveillance oversight argument
 - Lead argument; strongest evidentiary case; June 2026 target; open with "fresh eyes" framing
 - [] BOS public comment #2 — Measure K conflict of interest argument
 - Root cause / structural follow-up; sequenced after Flock appearance
 - [] Poster campaign at Plumas Lake main intersection
 - Factual/structural messaging only; timed to sustain momentum after BOS appearances
 - [] Media outreach (Daily Democrat op-ed target)
 - Timed concurrently with BOS presentation; Phase 2 CPRA response is the tripwire before engagement
 - [x] Outreach to DeFlock NorCal — DeFlock NorCal meeting attended April 18, 2026
 - Resources obtained: Woodland audit log data, flagging script, local official contacts from cities that canceled Flock
 - April 25 open meeting scheduled; ongoing coordination underway
 - [] ACLU Northern California — future collaboration consideration
 - After BOS presentation; not before
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Outstanding Research Items

- [] Quarterly public safety video review
 - [] Measure K oversight committee reports — full review
 - [] Hit-to-arrest rate data (most critical missing effectiveness metric)
 - [] August 2026 San Jose retrospective-search warrant case hearing — monitor for ruling
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Strategic Reminders

- Lead with liability at the BOS, not civil liberties
- Two separate public comment appearances: Flock first, Measure K conflict second
- The self-contradiction is the core argument: YCSO's portal policy statement vs. their own downloadable data
- Blank reason rate and after-hours timing are independent findings — do not conflate
- Research asymmetry is a strategic asset — ask questions, don't reveal the full evidence stack prematurely
- Structural framing over personal attack at all times
- Incrementalism over intensity: sustained campaign compounds; single punch fades